

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 16, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, JULY 16, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, JULY 15, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0092021 CAMPUS OAKS APARTEMTNS 1 v. LADUE, RANDALL

Plaintiff's Motion to Vacate Default and Default Judgment and to Dismiss Case

On June 27, 2025, the court entered default against defendant and thereafter entered default judgment against defendant on November 13, 2025.

Plaintiff now moves to vacate the default judgment on the grounds the default and default judgment are improper because defendant filed for Chapter 7 bankruptcy protection the same day they sought default and default judgment.

Plaintiff's unopposed motion is granted and the default and default judgment entered against defendant are vacated. (Code Civ. Proc., § 473, subd. (b).) Plaintiff's additional request to dismiss the action without prejudice is granted.

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2. M-CV-0095391 LEE'S ACCU-TECH SERVICE v. SLAUGH, DALE

Defendants' Motion to Quash Service of Summons

Defendants move to quash the service of summons pursuant to Code of Civil Procedure section 418.10.

Plaintiff opposes on three grounds: one, defendants appeared in this action by filing their motion to quash; two, when the motion was filed there were no proofs of service filed with the court; and three, plaintiff served defendants by mail and e-mail.

First, the filing of a motion to quash does not constitute as appearing in the action. (Code Civ. Proc., § 418.10, subd. (d).)

Second, although plaintiff correctly points out that no proofs of service were filed with the court when defendants filed their motion, plaintiff subsequently filed two proofs of service with the court on May 1, 2026. The court therefore analyzes these proofs of service because they allege the same manner of service that defendants complain about.

Third, the proofs of service do not sufficiently establish defendants were properly served. Service of summons and complaint by mail is "is deemed complete on the date a written acknowledgment of receipt of summons is executed, if such acknowledgment thereafter is returned to the sender." (Code Civ. Proc., § 415.30.) Here, the proofs of service filed with the court do not indicate any written acknowledgment of receipt of summons was served on defendants. Moreover, defendants contend they did not sign nor return any written acknowledgement of receipt of summons.

Accordingly, defendants' motion to quash service of summons is granted.

3. M-CV-0095721 MARIE GALLAGHER 2003 v. GALLAGHER, RICHARD

Motion to Stay

Appearances of the parties are required at the hearing.

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4. S-CV-0055748 LAEZMAN, LINDA v. EL DON ESTATES

Defendant El Don Estates Homeowners Association's Demurrer to Plaintiff's First Amended Complaint

Preliminary Matters

The court notes plaintiffs' opposition is untimely because it was filed six days after the deadline. (Cal. Rules of Court, rule 3.1300, subd. (d).) The court observes this is the second time that plaintiffs filed an untimely opposition and admonishes plaintiffs to comply with the applicable filing deadlines for future filings. The court further notes plaintiff fails to acknowledge or address the late filing. Continued violations may result in any type of applicable sanctions.

Defendant's request for judicial notice is granted.

Ruling on Demurrer

Defendant demurs to plaintiffs' first amended complaint ("FAC") on the grounds the complaint does not allege facts sufficient to state the causes of action and the complaint is uncertain. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Defendant first argues the complaint fails because defendant's alleged actions and omissions fall within the business judgment rule. This rule applies to homeowners associations "where a duly constituted community association board, upon reasonable investigation, in good faith and with regard for the best interests of the community association and its members, exercises discretion within the scope of its authority under relevant statutes, covenants and restrictions to select among means for discharging an obligation to maintain and repair a development's common areas,

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courts should defer to the board's authority and presumed expertise.” (*Lamden v. La Jolla Shores Clubdominium Homeowners Assn.* (1999) 21 Cal.4th 249, 265.)

“An exception to the business judgment rule's presumption exists in circumstances which inherently raise an inference of conflict of interest and the rule does not shield actions taken without reasonable inquiry, with improper motives, or as a result of a conflict of interest. [Citations.] But a plaintiff must allege sufficient facts to establish these exceptions. . . . In most cases, the presumption created by the business judgment rule can be rebutted only by affirmative allegations of facts which, if proven, would establish fraud, bad faith, overreaching or an unreasonable failure to investigate material facts. [Citation.] (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 906.)

The failure to allege facts sufficient to rebut the business judgment may be raised on demurrer. (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 906.)

Here, when taking the factual allegations in the FAC as true, plaintiffs allege facts sufficient to overcome the business judgment rule.

Defendant next argues the second cause of action for negligence and third cause of action for breach of fiduciary duty fail because it does not owe a duty to plaintiff.

A negligence cause of action requires plaintiff to establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) The elements for a breach of fiduciary duty claim are: (1) existence of a fiduciary duty, (2) breach, and (3) damages proximately caused by the breach. (*Meister v. Mensinger* (2014) 230 Cal.App.4th 381, 395.)

Here, when taking the factual allegations in the FAC as true, plaintiffs do not allege facts sufficient to state defendant owed them a duty or fiduciary duty. (*See, e.g., Ritter & Ritter, Inc. Pension & Profit Plan v. The Churchill Condominium Assn.* (2008) 166 Cal.App.4th 103, 119 and *Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 503 and *Cohen v. Kite Hill Community Assn.* (1983) 142 Cal.App.3d 642, 654.) Nor does plaintiffs' opposition provide any legal authority to support their position that a duty exists here.

Accordingly, the demurrer is sustained with leave to amend as to the second and third causes of action.

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Defendant's motion to strike is denied as moot in light of the court sustaining the demurrer with leave to amend.

Plaintiffs shall file and serve an amended complaint on or before **July 27, 2026**.

5. S-CV-0056742 LANE, DAVID v. MITCHELL, CHRISTIE

Plaintiff's Motion to Disqualify Opposing Counsel, Attorney Paul Cass

Preliminary Matters

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff moves to disqualify defendant's opposing counsel, Paul Cass, on five independent grounds.

First, plaintiff argues Paul Cass previously represented plaintiff and now represents defendant who has adverse interests to plaintiff in direct violation of Rules of Professional Conduct, Rule 1.9.

Rules of Professional Conduct, Rule 1.9 provides "A lawyer who has formerly represented a client in a matter shall not thereafter represent another person in the same or a substantially related matter in which that person's interests are materially adverse to the interests of the former client unless the former client gives informed written consent." (Rules of Prof. Conduct, rule 1.9, subd. (a).) In other words, "an attorney will be disqualified only when there is "a 'substantial relationship' between the subjects of the prior and current representations." (*Victaulic Company v. American Home Assurance Company* (2022) 80 Cal.App.5th 485, 506.)

The substantial relationship test involves two questions: First, whether the attorney's relationship with the former client was direct and personal; if so, the court then determines "whether there is a connection between the two successive representations." (*Id.* at 506–07.) As to the latter question, "current and former matters are deemed substantially related only if they involve a substantial risk of a violation of a duty owed the former client." (*Id.* at 511–12.) Importantly, "[t]he presumption that former counsel possesses confidential information is triggered only if there is a substantial risk that confidential information would be used in the current representation, which occurs where it is reasonable to conclude that the information

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would *materially* advance the [present] client's position.” (*Id.*, at 512 [internal quotation marks omitted].)

Both parties concede attorney Paul Cass formerly represented plaintiff in October and November 2023 and now represents defendant in an adverse proceeding to plaintiff.

The court, however, cannot find the former representation and current representation are substantially related. Paul Cass’s former representation of plaintiff involved two one-hour in-person discussions regarding issues with plaintiff’s mother and wife’s trust. (Cass Dec’l, ¶ 5.) Also, Paul Cass declares he did not discuss plaintiff’s financials or Megan Paterson or defendant in the two meetings with plaintiff. (*Ibid.*) Paul Cass’s current representation of defendant involves defendant’s alleged publication of plaintiff’s attorney-client communications that he had with defendant during their former attorney-client relationship. (*See generally* First Amended Complaint.) These matters are not substantially related. Nor does the presumption that Paul Cass possesses confidential information triggered because any information about plaintiff’s mother’s and wife’s trust would not materially advance defendant’s position.

Second, plaintiff argues that Paul Cass is representing Megan Patterson, the petitioner in a domestic violence restraining order action where plaintiff is the respondent, and simultaneously representing defendant in this action. However, this situation is not a simultaneous or dual representation. (*See Flatt v. Superior Court* (1994) 9 Cal.4th 275, 284–86.)

Third, plaintiff avers Paul Cass received and used privileged information between plaintiff and defendant. The alleged privileged information is an email authored by plaintiff and sent to defendant that “reminds” defendant the parties had an attorney-client relationship, that one of defendant’s long-time clients filed a domestic violence restraining order against him, the long-time client’s attorney is being removed for a conflict of interest, and that defendant cannot provide the long-time client legal advice. (RJN, Ex. A.) However, this email is not a confidential communication between a client and lawyer. (Evid. Code, § 952.)

Fourth, plaintiff argues that his pending appeal of the trial court’s ruling denying his motion to disqualify Paul Cass in another action filed in Placer County Superior Court heightens the integrity risk and threatens his rights in both actions. He cites *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135 and *Jessen v. Hartford Casualty Ins. Co.* (2003) 111 Cal.App.4th 698

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for the proposition that this independently warrants Paul Cass's disqualification. Neither legal authority cited stands for this proposition.

Fifth, plaintiff argues that Paul Cass is a necessary and material witness to this action and his testimony goes to the heart of the disputed issues. Specifically, plaintiff contends "opposing counsel is not a peripheral observer but a central actor in the events at issue, he personally received, reviewed, and used the privileged communications that form part of the basis of this disqualification motion. Only defense counsel can testify to when, how, and under what circumstances he obtained and deployed those communications, and such testimony is unavailable from any other witness." (Plaintiff's Motion to Disqualify, p. 12.) However, the test is whether Paul Cass would have to testify at trial, not at the motion to disqualify hearing. (*Smith, Smith & Kring v. Superior Court (Oliver)* (1997) 60 Cal.App.4th 573, 578.) The court finds Paul Cass is not a necessary and material witness to trial because his testimony is not genuinely needed.

Accordingly, plaintiff's motion is denied.